

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING**

Final Pretrial Conference Order, Witness List, and Exhibit List

Trial begins October 6, 2025

United States District Court for the Western District of North Carolina

Civil Action No. SYN-WDNC-24-CV-0520

Entered October 3, 2025

Judge Miriam D. Carver conducted the final conference with Maya Holt and Jonas Bell for Blue Ember and Eli Mercer and Tara Webb for Granite Heron. Avery Thorn attended as courtroom clerk. The Court confirmed a six-day jury trial on October 6–10 and October 14.

The parties estimate that openings will occur Monday morning, followed by contract proof. Tuesday will address the temperature event and causation. Wednesday will focus on Cobalt Finch and mitigation. Economic experts will testify Thursday, with Dr. Elodie Park permitted to begin out of ordinary order. Blue Ember will complete its case Friday morning, after which Granite Heron may present the balance of its defense. Rebuttal, instructions, and closing are planned for October 14.

The sequence is an administrative forecast, not a ruling about burdens or weight. Witness availability may require adjustment. Any trial motion must be made on the actual record at the proper time and on the ground expressly stated.

Evidentiary agreements and reserved rulings

The Court accepts the parties' authenticity stipulation for the integrated agreements, core custody records, CTX-9 source certification, Cobalt Finch communications, and produced financial schedules. Authenticity does not concede a disputed narrative, scientific consequence, hearsay purpose, completeness, or expert inference.

The readable logger graph may accompany testimony establishing its relationship to the source export. Counsel shall describe it as a rendering rather than a machine-generated legal or product-disposition decision. A short transport timeline may be used demonstratively if every event is tied to admitted evidence.

The assay and lot-disposition materials may be presented with proprietary technical detail generalized. Blue Ember may explain intended validation use; Granite Heron may establish that tested samples retained measurable activity. Neither side may tell the jury that the fictional material was administered to a patient.

The Court reserves objections to particular forecast inputs, expert demonstratives, and contract-limit arguments until foundation and context are supplied. Counsel shall request a sidebar before mentioning an item subject to a reserved ruling. No lawyer may imply that a reserved objection has been decided favorably.

Blue Ember witness list

Dr. Mira Solis will testify as Blue Ember's organizational representative about contract implementation, BE-214's validation purpose, shipment instructions, quarantine, disposition, replacement planning, Cobalt Finch review, Aurora Quay, and business records. Her fact testimony will not substitute for retained economic opinions.

Kellan Brooks, CPA/CFF, will testify concerning the 1.35 million dollar original-lot component, 850,000 dollars of replacement expense, 2 million dollars of bounded delay, source reconciliation, credits, and mitigation sensitivities. His gross opinion is 4.2 million dollars.

Blue Ember may call Adrian Locke and Tess Holloway adversely regarding Granite Heron's agreements, equipment, training, Fletcher staging, alarm routing, notice, investigation, and recordkeeping. It may call Dr. Nia Calder during a jointly coordinated time to address the October 2 capacity proposal.

Blue Ember identifies custodians through stipulation rather than live cumulative testimony. It may use brief deposition designations if an identified record issue remains. Any additional witness is limited to true impeachment or unforeseen rebuttal after prompt disclosure and permission.

Granite Heron witness list

Adrian Locke will present Granite Heron's organizational position on the integrated writings, admitted operational deviation, scientific-causation limits, contract defenses, claim review, and the relationship between gross loss and mitigation. He may be recalled after adverse examination without repeating settled foundation.

Tess Holloway will explain the Fletcher process, minute-by-minute response, source records, root-cause conclusions, corrective measures, and limits of her technical role. She may acknowledge procedure failure but will not offer product-stability or damages opinions.

Dr. Nia Calder will testify as a neutral organizational witness for Cobalt Finch. Granite Heron will conduct the first trial examination about genuine capacity, facility fit, transfer tasks, deadlines, estimated expense, and schedule. Blue Ember may examine remaining qualification, elevated risk, conditions, and lack of guarantee.

Dr. Elodie Park will offer Granite Heron's mitigation and operations-economics opinions. Her Thursday appearance is permitted out of order for scheduling, even if Blue Ember formally closes its case Friday. The jury will receive a neutral explanation that this accommodation does not alter burdens or signify a Court view.

Blue Ember and joint exhibits

Blue Ember's expected exhibits include the master logistics agreement, quality agreement, BE-214 statement of work, purchase order and Release Specification Revision 3, the route confirmation, certificate of conformance, and the linked shipment instructions. The transaction dates shown on those instruments control; later pleading attachment dates will not be placed before the jury as substantive events.

Operational exhibits include the custody form, CTX-9 report and certification, refrigeration and contact chronology, Blue Ember deviation file, confirmatory assay summary, and September 16 disposition. Joint presentation may eliminate redundant copies.

Replacement and damages materials include Aurora Quay's schedule, a cost ledger, invoices, Brooks's calculation schedules, source reconciliations, and a credits summary. Proprietary financial detail outside the claimed categories remains redacted by agreement.

The parties jointly identify the September 19 stipulated facts, an agreed glossary, a facility map, and a neutral arithmetic worksheet. A joint exhibit designation means both sides agree to admission or foundation, not that they agree with every inference urged from it.

Granite Heron and third-party exhibits

Granite Heron expects to use its pretrip and equipment records, Fletcher staging entries, alarm-routing information, internal investigation, training evidence, corrective-action summary, and claim correspondence. Later summaries will be dated and distinguished from contemporaneous sources.

The Cobalt Finch set includes the October 2 email, proposed terms, October 4 deadline, capacity calendar, preliminary fit assessment, transfer workplan, question log, cost estimate, and nonprivileged decision communications. Its qualification file shows both general capability and BE-214 work remaining.

Park's materials include a capacity comparison, task network, cost bridge, avoided-delay analysis, net-deduction table, and sensitivity examples. Granite Heron may also cross-examine Brooks with admitted sources rather than create a second copy of each document.

Demonstratives are not evidence unless separately admitted. A timeline must not label Cobalt Finch "fully approved," and a quality chart must not label all vials "destroyed" absent supporting testimony. The Court will instruct the jury to rely on admitted sources and testimony rather than an advocate's heading.

Daily sequence and courtroom procedure

Jury selection and preliminary instructions begin at 9:00 on October 6. Openings will be limited to forty-five minutes per side. The Court will provide ordinary breaks and a lunch recess, with witnesses directed not to discuss unfinished testimony.

Counsel shall provide the clerk the next day's witness order before adjournment. Questions should identify documents by trial exhibit number and descriptive name. The reporter will mark each logical transcript division through page breaks in the source without printing civil-record or appellate labels inside the testimony.

At the close of a party's proof, legal motions will be heard outside the jury's presence. The moving party must specify the issue and evidentiary deficiency asserted. Neither the pretrial submissions nor a general reservation will add a ground that the motion does not actually state.

The final charge conference will occur before closing on October 14. Objections must be stated distinctly after the proposed charge is reviewed. The Court anticipates separate verdict questions for liability, causation, gross damages, mitigation, and net award.

Final directions and entry

Witnesses other than authorized representatives and permitted experts remain subject to exclusion. Counsel shall caution participants not to research the fictional scientific terminology or discuss testimony publicly during trial. Jurors will receive a corresponding instruction.

The parties must disclose any new credit, schedule record, or material correction immediately. A transcript correction may repair an error but may not silently rewrite testimony. Source device data and calculations remain preserved through judgment and any appeal.

The Court approves the lists and sequence subject to the rulings above. An omitted cumulative witness or exhibit may not be added without good cause. A true impeachment item remains governed by the evidence rules and the Court's control of trial.

SO ORDERED October 3, 2025.

Miriam D. Carver

United States District Judge for this exercise

Counsel acknowledged the order on behalf of their respective fictional clients. Nothing in this document belongs to an actual court, litigant, laboratory, transportation provider, witness, or law firm.

Avery Thorn shall maintain the exercise docket and note any authorized substitution before presentation.